

Blue Fox Properties, LLC
 7368 N La Cholla Boulevard | Tucson | AZ | 85741
 Phone: 520.780.7888 | Fax: 520.844.6296
 www.BlueFoxProperties.com

RESIDENTIAL RENTAL AGREEMENT

1. Landlord, Barbara Janney 3002 W. Akena Drive Tucson AZ 85742, Agent, Blue Fox Properties, LLC, does by this agreement rent to said Tenant(s), Samuel Bickel Terry Bickel Tyler Bickel

the property located at,

Address: 12884 N Indian Palms Dr City: Oro Valley Arizona, Zip: 85755-8720

Including personal property:

Stove:	applicable	Washer:	applicable
Built-in microwave:	applicable	Dryer:	applicable
Dishwasher:	applicable	Refrigerator:	applicable
Window coverings:	applicable	Pool Vacuum:	not applicable
Other personal property: <u>n/a</u>			

Reference to Landlord or Agent shall mean either/or may act individually or together on the matter. Blue Fox Properties, LLC represents the owner of the property exclusively in this transaction.

2. **To have and to hold** same to said tenant from 10:00 a.m. on 02/01/2023 to 12:00 noon on 02/06/2024 inclusive. In consideration of the leasing of the premises and personal property, if any, as above set forth, said Tenant covenants and agrees to pay Landlord/Agent as rent the sum of \$ \$26,244.83 payable in monthly installments of \$ \$2,150.00 on the **first day of each and every month** until the sum of \$ \$26,244.83 has been paid in full. The pro-rated amount of \$ \$2,150.00 for the period from 02/01/2023 to 02/28/2023 shall be paid on or before 01/16/2023, with the first full month's rent due on 01/16/2023. **The rent and all other accrued charges shall be due and payable no later than 5:00 p.m. on the first day of each month, regardless of weekends or holidays.**
3. **Late Payment and Returned Checks:** All rent is due and payable the first day of the month as indicated above. **There is no grace period.** Tenant shall be in breach of this agreement if any rental installment above is not paid when due and Landlord/Agent shall be entitled to terminate the agreement for such nonpayment as provided below in this agreement. All rent accepted after the due date shall include a late charge of twenty dollars (\$20.00) per day. Acceptance of the rent and late charges will not waive Landlord/Agent's rights herein. A fee of fifty dollars (\$50.00) plus any bank charges will be assessed against Tenant for any form of payment, including electronic payments, dishonored or otherwise not paid for any reason, plus late fees. After receiving two dishonored checks or any other form of dishonored payments, all future rents must be paid with a cashier's check or money order. If rents are not received by 5:00 p.m. on the 3rd of the month, Agent will send a "5 Day Notice to Pay or Quit" which is the first step in the eviction process. Additionally, a fifty dollar (\$50.00) fee will be charged to the Tenant to prepare and send the notice. Rents paid after 5:00 p.m. on the 3rd must be paid with cashier's check or money order.
4. **Payments and deposits.** On or before 01/16/2023, Tenant shall pay the amounts below:
 Security deposit: n/a (No Security Deposit Option)
 First month's or pro-rated rent: \$2,150.00
 Non-refundable tenant administrative fee(s): \$375.00
 Non-refundable pet administrative fee(s): \$300.00
 Other: Monthly Fees, February 2023: \$58.00 No Sec. Deposit Opt., \$29.00 Resident Benefit Pckg., \$50.00 pet fee
 Total required payment: \$2,962.00
5. **Partial Payment:** Partial payment is not acceptable without a signed partial payment agreement.
6. **Paying Rent:** Said rent for the aforementioned premises shall be paid as mentioned above without deductions or offsets. Tenant agrees to pay rent through Agent's website at www.BlueFoxProperties.com. **For any rental payments**

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 1 of 18



Tenant's initials SB TB TB

that are not paid through Agent's website at www.BlueFoxProperties.com, Tenant will be charged a \$25 processing fee for each payment. If an electronic payment is dishonored for any reason, electronic payment privileges will be terminated and the \$25 processing fee will be applied to each future payment. Although other forms of payment including checks, money orders or cashiers' checks will be accepted, the \$25 processing fee will be applied. Cash will not be accepted. Tenant acknowledges that any checks received may be converted immediately to an ACH payment. Rent may be mailed to Agent at 7368 N La Cholla Boulevard, Tucson, AZ 85741.

Resident Benefit Package: Tenant agrees to pay \$29 per month for the Resident Benefit Package. This package includes the following:

- **Moving Concierge Program:** The moving concierge service is provided by a third party company, Citizen Home Solutions, www.CitizenHomeSolutions.com, that helps make the moving process less stressful while also saving our residents time and money. They assist residents in activating utilities, internet, cable and alarm services with one simple phone call rather than individualized requests to the various service providers. This program does not include setting up trash service.
- **Carpet/Tile Cleaning or Pest Control credit:** A \$50 credit will be available to apply towards carpet/tile cleaning or pest control services performed by a reputable company in good standing with the Arizona Corporation Commission. This benefit is limited to once every 12 months and unused benefits do not roll over to the next 12 month period nor are they credited or useable at move out. The request along with the receipt must be submitted via email to the property manager for reimbursement.
- **Home Buyer Program:** If resident decides to purchase a home and chooses Blue Fox Properties to represent them in the transaction, Blue Fox Properties will credit the dollar amount equal to the refundable deposit in this lease, up to a maximum of \$1,000, and apply it towards resident's closing costs. Contact Blue Fox Properties at any time during the lease term to learn more.
- **Online 24/7 Resident Portal:** Our residents have 24/7 access to their Resident Portal to submit maintenance requests, free online payments using ACH, as well as access to electronic statement and documents.
- **Free Online Payment Options:** Resident can pay rent online for free by paying via ACH directly from their bank account. A one-time payment can be made or autopay can be set up so there is no need to ever worry about missing a rent payment again. In addition to online payments, residents have the benefit of using the RentMoney service at thousands of participating locations.
- **Utility and Maintenance Reduction Program:** Blue Fox Properties will have the HVAC filters delivered to the property every 60 days, approximately. Our residents will simply install the filter(s) when it arrives.
- **After-Hours Emergency Maintenance Hotline:** Live phone answering for after hours, holiday and weekend emergency calls.
- **One Missed Appointment Waiver:** This benefit can be used to avoid that missed appointment fee, a maximum of one time per year.
- **Late Pay Forgiveness:** Good for use once annually, for the late fee on one month's rent payment, up to 5 days late is the maximum forgiveness.
- **One Time Waiver of Non-sufficient Funds (NSF) Fee:** Life can get hectic sometimes and a small oversight financially can cause big problems. Blue Fox Properties will waive one NSF fee during the entire tenancy, not including the move-in funds.

7. **Property Evaluation Form:** The Property Evaluation Form shall be completed by Tenant and returned to Agent within three (3) calendar days of the commencement of this agreement. Tenant has inspected the leased premises and finds them to be in clean, rentable, undamaged condition, except as noted on the Property Evaluation Form. If the Property Evaluation Form is not received from Tenant, the property is accepted in perfect condition. The Property Evaluation Form is to report the condition of the home, but it is not a request for maintenance or repairs to be completed.

8. **Utility Responsibility and Contact Information:**

Water: Tenant
 Sewer: Tenant
 Electric: Tenant
 Natural Gas: Tenant
 Propane: n/a
 Trash Collection: Tenant

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 2 of 18



Tenant's initials SB TB TB

Other: n/a

Tenant agrees to pay the cost of and all charges for connection and service to all utilities. Landlord/Agent shall not be liable to furnish utilities or services occasioned by strikes, breakage of equipment, failure of source supply, acts of God, or by another cause beyond the control of said Landlord/Agent. **Tenant fully understands that it is Tenant's responsibility to contract for utility services.** Tenant agrees to pay all charges incurred by premises from the commencement date of this agreement through its termination date. **A \$50 service charge will be assessed for each utility not transferred to the Tenant's name on the date the lease begins and will be charged for each utility each month until all utilities are transferred into Tenant's name.** Any damage or loss incurred due to Tenant's negligence to pay utilities, abandonment or failure to provide heat when exterior temperatures fall near freezing, or to inform Agent of shut off shall be Tenant's expense.

Because Southwest Gas has the longest lead time and the gas service is typically turned off between tenancies and during vacancy periods, it is important to give them as much lead time as possible. But it is important to notify the other utility service providers immediately as well.

Water: Oro Valley Water (520) 229-5000

[] Other: n/a

Electric: Tucson Electric Power (520) 623-7711

Gas: Southwest Gas (877) 860-6020

Phone – Landline:

Century Link – 800-244-1111

Trash Collection Services: Tenant's choice

9. **Rental Taxes:** In addition to said rent, Tenant shall pay to Landlord/Agent all transaction privilege, excise or other taxes imposed upon or measured by the rent provided in this agreement by any governmental authority having jurisdiction. In the event that amount of such tax is changed after execution of this agreement by amendment or addition of any statute or ordinance of any governmental authority having jurisdiction, Tenant shall pay the changed amount of such tax resulting there from. This property is presently subject to no rental tax.
10. **Application of Payment:** Payments made by Tenant shall be applied to Tenant's balance due in the following order: first to damages, then NSF charges, late fees, non-compliance charges, service fees, any other fees, legal fees and court costs, security deposits, past due rent and finally current rent due.
11. **Security deposits:** Security deposits will be held in Agent's interest bearing trust account with a bank or other recognized depository located in the State of Arizona. Landlord receipts will be held in the same trust account. Earned interest shall belong to the Agent. Agent is not responsible for loss of funds due to failure or bankruptcy of said depository. Security deposits may not be used as advance rent, but as security for full and faithful performance of all obligations of Tenant under or pertaining to the agreement. Landlord/Agent will provide an accounting and any refund due of the security deposit within fourteen (14) business days of Tenant's termination or expiration of this agreement, return of possession and demand by Tenant. Tenant may request to be present during the move-out evaluation. In the event the management agreement between Agent and Landlord is cancelled during the term of this lease, or any extension, the security deposit will be sent to the Landlord in a check made payable to the Landlord. The Tenant will need to negotiate directly with the Landlord for return of the security deposit.
12. **Occupancy:** Tenant further agrees that the premises shall be occupied by only:
3 Adults
0 Children Names: n/a



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Service animals for the disabled shall be allowed on premises. Should Tenant wish to add Tenants and/or cosigners to the lease, or remove Tenants and/or cosigners from the lease, and Landlord/Agent allows the change, a \$200 lease change fee will be added for each Tenant and cosigner added to the lease or removed from the lease. Any new Tenants or cosigners must also submit a completed application with the current application fee for processing.

13. **Non-smoking:** Premises (interior and exterior) are classified as non-smoking. For purposes of this rental agreement, smoking includes use of pipes, cigarettes, electronic cigarettes, cigars, hookahs and the like. None of these will be allowed to be used on the premises.
14. **Possession:** If Landlord/Agent is unable to deliver possession of the premises at the commencement hereof, Landlord/Agent shall not be liable for any damage caused thereby nor shall this agreement become void, but Tenant shall not be liable for any rent until possession is delivered. Tenant may terminate this agreement if possession is not delivered within seven (7) days of the commencement of the term hereof.
15. **Service Fees:** Unless otherwise specified in this agreement, Tenant agrees to pay \$50 for each notice or "friendly reminder" delivered to Tenant for a lease violation. Tenant agrees to pay \$50 for each form that is completed by the Agent for the Tenant to obtain a home loan, obtain a vehicle loan or for any other purpose that solely benefits the Tenant.
16. **Phone, Alarm, Cable & Satellite Dish Installation:** Tenant shall not allow phone, alarm, cable or satellite dish installers to penetrate the walls or roof of any structure on the premises. No satellite dishes may be attached to any building, fence or wall. All satellite dishes must be free standing and removed by the tenant at move out. Penetrations include those for running cables and/or wiring as well as the penetrations made to secure the cabling or satellite dish to any structure and/or to provide outlets on interior or exterior walls. If installers make unauthorized penetrations, Tenant may be held responsible for the cost of the associated repairs.
17. **Pets and Service Animals:** Tenant shall not have any animal, including mammals, reptiles, birds, rodents, or pet of any nature, or service animal, on or about the premises with the exception of those listed below (authorized pets and service animals). If unauthorized pets are found on the premises, the Tenant agrees to pay, retroactive to the beginning of the tenancy, \$100 per month per unauthorized pet and held responsible for the conditions stated below. Service animals for persons with disabilities shall be allowed on premises.

Tenant agrees to pay the pet fee of \$25 per pet per month. Service animals are not pets and therefore excluded from pet fees.

Tenant acknowledges that only the pet(s) and service animal(s) listed below are authorized, additional pets or service animals must be authorized by the Landlord/Agent. Tenant agrees to:

- register and immunize all pets and service animals in accordance with local ordinances.
- keep pets and service animals under control at all times.
- keep pets and service animals restrained, but not tethered, when outside the dwelling.
- not leave the pets and service animals unattended for any unreasonable periods.
- dispose of pet and service animals droppings immediately by depositing them in the proper container.
- keep pets and service animals from causing any annoyance or discomfort to others and will remedy immediately any complaints made through the Agent.
- follow all local ordinances regarding pets and service animals, i.e., leash laws, noise ordinances, etc.

Tenant agrees that Landlord/Agent reserves the right to revoke permission to keep the pet should Tenant break this agreement. If Tenant does not follow this agreement and is evicted for lack of compliance, then any monies lost due to this vacancy are owed to the Landlord/Agent by the Tenant. When Tenant vacates, the property shall be cleaned and restored, at Tenant's expense, to such a manner that will eliminate any evidence of pets or service animals, their odor evidence, and their allergens. This may include but is not limited to carpet cleaning, fumigating, washing walls, cleaning upholstery or fabric, painting, general cleaning, window cleaning, fumigating, repairing scratched glass, repairing damaged irrigation systems, repairing landscape, etc. Tenant agrees to accept all liability for the pets and service animals and be responsible for any damages or liability that may result from the pets' or service animals' actions.



Tenant's initials SB TB TB

Pet DescriptionsType: Cat Breed: Domestic Shorthair Weight: 4lbsType: Cat Breed: Domestic Shorthair Weight: 8lbsType: n/a Breed: n/a Weight: n/aType: n/a Breed: n/a Weight: n/aService Animal DescriptionsType: n/a Breed: n/a Weight: n/aType: n/a Breed: n/a Weight: n/aType: n/a Breed: n/a Weight: n/aType: n/a Breed: n/a Weight: n/a

18. **Bed Bugs:** If bedbugs are discovered in the premises or in a surrounding unit, the tenant agrees to comply with additional steps including but not limited to any protocol provided by the pest control company and:

- a. Placing all bedding, drapes, and rugs in bags to be transported for laundry or dry cleaning. Wash and dry all machine-washable items in the hottest setting. Dry clean any items that are not washable and notify the drycleaner of the issue so that proper steps may be taken to remedy the issue.
- b. Removing or destroying all infected mattresses in sealed plastic and away from the common trash disposal area. Discard any other items that cannot be treated in the same manner.
- c. Emptying all closets and furniture from the area during treatment and not returning any of those items until they have been cleared by the pest control specialist. Follow instructions on how to properly clean or destroy any infected items.
- d. Deeply vacuum all areas of the unit including but not limited to closets and furniture. Follow instructions on how to properly discard vacuum contents.
- e. Move all of the furniture away from the walls and leave access to closet areas.

Tenant acknowledges that the Landlord/Agent is not an insurer of Tenant's property and is encouraged to have insurance to cover any losses. Furthermore, Tenant agrees to indemnify and hold harmless the Landlord/Agent and its agents from any claims, including attorney fees, which Tenant may incur as a result of the negligent or intentional acts of Tenant or Tenant's guests. Tenant may be liable for failing to comply with this part of the lease. Landlord/Agent and its agents shall not be liable to Tenant or Tenant's guests for any harm as a result of any pest issue other than for the intentional failure to address a pest issue.

Landlord/Agent are not liable for any damages caused by pests, including but not limited to, replacement of furniture, medications or medical expenses. Landlord/Agent is not responsible for any damage done to Tenant's abode or personal items during pest control inspections or treatments.

19. **Bed Bug Educational Information:**

They're back and they're bigger than ever: After a decades-long hiatus, bedbugs have made a creepy-crawly comeback in hotels, office buildings, department stores -- you name it -- all across the U.S. In fact, according to a recent poll conducted by the National Pest Management Association (www.pestworld.org), 95% of the pest control companies surveyed reported a bedbug infestation within the last year -- up an astounding 70% from more than a decade ago.

The pesky critters can induce itchy, red welts and enough anxiety to make travelers wonder if they should stay home. Luckily, there are plenty of precautionary measures to reduce the risks of an encounter while on the road. Sleep better

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 5 of 18



Tenant's initials DS DS DS
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at night by following the expert tips at www.nysipm.cornell.edu.

With proper identification, a thorough room inspection, and careful packing and unpacking, you can stop worrying about sleeping tight -- and letting the bedbugs bite.

What Do Bedbugs Look Like?

Wingless bedbugs range in size from 1 to 7 millimeters, are reddish brown, and flat and oval in shape. Adult bed bugs are flat and are the size of poppy seeds. Fecal droppings (brown or black stains that look like pepper flakes), shed skins, and the tinier translucent eggs and nymphs (juveniles) are evidence of the live pest. Blood stains on mattress seams, sheets, furniture, baseboards and cracks in furniture are also signs. Lots of other pests are easily confused with bed bugs.

If You Travel, What Steps Should You Take??

If you travel, a hard-shelled suitcase has fewer folds and seams where bedbugs can hide. Pack your belongings -- clothes, toiletries, shoes -- in sealable plastic bags, and open only when accessing the items. Alternatively, consider wrapping your entire pack in a trash bag to stave off potential infestations during your travels. Many travelers throw a suitcase on the bed or keep the bag zipped up on the floor in hopes of keeping out any wandering scourges. Instead, place your baggage -- including any purses, backpacks, or camera bags -- on a luggage rack or in the bathroom, where there are fewer nooks and crannies.

How to Inspect Your Hotel Room and Your Home

Bedbugs like to lodge themselves into cracks, crevices, folds, and ruffles in areas frequently trafficked by humans. When you arrive, pull back the covers of the bed and inspect under the linens and pillows. Use a flashlight if necessary. Look in the seams and sides of the mattress, box spring, and frame, and then check behind the headboard. The majority of the pests away from the bed will be within close proximity: under and around nightstands and lamps, and in the pleats of upholstered furniture (a favored hideaway) and drapes. The bloodsuckers can also reside behind wall hangings, such as mirrors and paintings.

When You Get Home

Even just a few of these critters can start a full-blown infestation, should you inadvertently carry them back to your abode. Conduct a thorough inspection of your suitcase outdoors or in the garage, away from furniture and sleeping areas. If you live in an apartment, use your balcony, bathtub, or shower (bedbugs have a harder time crawling up smooth surfaces and are easier to spot against light colors). In the worst-case scenario, keep the suitcase out in the hallway. Pay special attention to pockets, linings, and seams. Then thoroughly vacuum or steam clean the bag before stowing it away. Wash all of your clothes -- even those unworn -- on a high-heat setting, and dry for at least 30 minutes. This will kill any previously undetected bugs.

Other Precautions:

Bed bugs can enter homes by latching onto used furniture, luggage and clothing, and by traveling along connecting pipes and wiring. Never bring bed frames, mattresses, box springs or upholstered furniture found on the street into your home. Check all used or rented furniture for bed bugs. If you suspect you have been around bed bugs, immediately wash and dry your clothing on hot settings.

How to Clean and Disinfect?

Get rid of clutter to reduce places bedbugs can hide. After checking them for bed bugs, consider putting non-essential belongings into storage until the bed bugs are gone from your home. Check all items again before returning. Wipe off dead bugs, blood stains, eggs and droppings with hot soapy water. Wash all items showing bed bug stains in hot water (140 degrees F) and dry on the highest setting for at least 30 minutes. Other clean items suspected of having bed bugs should be placed in a hot dryer for at least 30 minutes to kill bed bugs. After drying, store items in sealed plastic bags until you are sure you have gotten rid of bed bugs. Vacuum carpets, floors, bed frames, furniture, cracks and crevices daily, using the brush and crevice tools. Empty the vacuum or seal and dispose of its bag outside of your home after each use. Enclose infested mattresses and box springs in a cover that is labeled "allergen rated," "for dust mites," or "for bed bugs" for at least a full year. Periodically check for rips or openings and tape these up.



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If Treatment is Required

Any bed bug issue must be treated immediately and you must comply with any protocol provided by the company providing the treatment. Follow up treatments are frequently required. Over-the-Counter foggers and bug bombs are not effective against these bugs. Never spray the top of a mattress or sofa.

20. **Keys and Remotes:** Landlord/Agent agrees to deliver to tenant upon possession:

1 sets of keys to the premises
 2 garage door remote(s)
 0 gate key(s)
 0 gate remote(s)
 0 mailbox key(s) – Tenant is responsible to obtain new mailbox keys from the U.S. Post Office, 800-275-8777, or HOA, and is responsible for the associated cost of same.
 0 pool key(s)
 0 ceiling fan remote(s)
 0 a/c unit remote(s)
 0 irrigation key(s)
 0 other n/a

Tenant acknowledges that Tenant will have 30 days from this agreement's start date to schedule an appointment for the home to be re-keyed by AGENT'S vendor. If it is not done within the first 30 days, Tenant acknowledges that Tenant will be responsible for the cost of the re-key and required to provide AGENT a copy of the key within 60 days of this agreement's start date. Tenant shall be responsible for the security of the premises until all keys and openers have been physically returned to Landlord/Agent or otherwise satisfactorily accounted for by the Tenant. Leaving keys and garage door openers/entry gate openers in or on the premises will not be considered returned, per the Arizona Residential Landlord Tenant Act. Tenant is not authorized to change the locks or add a deadbolt lock. Tenant agrees to pay the cost of replacing any of these keys or openers which are not returned upon tenant's move-out. Tenant acknowledges that unless otherwise provided herein, premises have not been re-keyed. **If Tenant is locked out of the premises, Tenant may acquire keys from Agent at Agent's office during normal business hours for a fee of \$50 payable via cashier's check or money order.** Agent will not be responsible for delivering keys to Tenant nor for providing keys after normal business hours. Tenant understands that after normal business hours, Tenant must contact a locksmith at Tenant's expense to respond to a lock out.

21. **Maintenance matters:** The following shall be the responsibility of the party indicated:

Pest Control:	Tenant
Front yard maintenance:	Tenant
Back yard maintenance:	Tenant
Dishwasher maintenance:	Landlord
Stove maintenance:	Landlord
Microwave maintenance:	Landlord
Washer and Dryer maintenance:	Landlord
Refrigerator maintenance:	Landlord
Water Softener maintenance:	Not Applicable

Tenant shall maintain the premises in a neat and undamaged condition and in particular, shall comply with applicable provisions of building codes, maintain the premises in a clean and safe condition, dispose of all garbage and other waste in a clean and safe manner, keep and use all plumbing and electrical, sanitary, heating, ventilating and air conditioning facilities, elevators, other facilities and appliances in a clean and reasonable manner, keep all plumbing free of clogs, and generally conduct him/herself and others in his/her charge, including pets, in a manner so as not to disturb his neighbors or in any way deface, impair or otherwise destroy any part of the premises. If Tenant does not comply with such requirements, Landlord/Agent may make the necessary repairs and submit a bill to Tenant subject to the provision of A.R.S. 33-1369.

Tenant is responsible for replacing burnt out light bulbs during the lease term and returning the property with fully functioning light bulbs throughout the property. Tenant is responsible for purchasing and replacing any applicable appliance filters as needed during the lease term.



Tenant's initials SB TB TB

If any required repair is not made within 72 hours of Tenant's request, it is Tenant's responsibility to continue to notify Agent until the repair has been scheduled and completed. If it is found that the requested repair was unnecessary or that it was caused by the abuse or misuse of Tenant, then the service call may be charged to Tenant. For example, if a service call is requested by Tenant to repair a disposal and a bottle cap found in the disposal is found to be the cause of the problem, the service call may be charged to Tenant. Another example may be that Tenant requests a service call because the air conditioner is not working, but upon the vendor investigating the issue, nothing is found to be wrong with it, or it is found that the filter has not been changed and that is the cause of the problem, the service call may be charged to Tenant.

In the event of an insect infestation, such as bees in the walls or termites, extermination will be the responsibility of Landlord.

Tenant acknowledges that the property may be covered by a home warranty at any time during the tenancy. This may impede Agent's ability to address maintenance issues in as timely a manner as is preferred by Tenant.

Dirty HVAC filters can cause mechanical failure. In the event dirty filters cause mechanical failure, the Tenant may be charged the associated repair or replacement costs.

Tenant shall irrigate and maintain surrounding grounds, including lawns and shrubbery and keep same clear of rubbish or weeds if such grounds are part of the leased premises. Tenant agrees to remove trash and debris that blows onto or appears on the premises, no matter the source. Major tree and shrub maintenance and trimming above eight feet shall be the Landlord's responsibility. If Tenant fails to maintain landscape in satisfactory condition, Agent may notify Tenant of default. If Tenant fails to respond by maintaining and preserving the yard, the Tenant hereby authorizes Agent to contract for landscape services and add the cost of services to the Tenant's rent. Failure to pay this additional rent shall be a cause for termination of the lease.

The Tenant is responsible for contractor service call charges if Tenant makes an appointment with the contractor but does not meet the contractor at the agreed upon time and a service call charge results. It is the responsibility of the Tenant to make arrangements for repairs with the contractors during normal business hours. If Tenant chooses to make an appointment after the normal business hours and an overtime charge results, Tenant will be responsible for the overtime portion of the charge, except in an emergency situation as determined by Agent.

If materials or labor has been pre-approved by Landlord/Agent and purchased by Tenant, Landlord/Agent will reimburse Tenant. Tenant will simply send in the receipts to the Agent. For bookkeeping purposes, Landlord/Agent cannot permit these items be deducted from the rent. Any improvements shall become the property of the Landlord and shall remain upon and be surrendered with the premises at the termination of this agreement or any of its extensions.

In the event of a "break in," Tenant will supply the Landlord/Agent with a copy of the police report at Tenant's expense. Should the Tenant fail to do so, Tenant agrees to pay the repair cost. Broken windows and glass are the responsibility of the Tenant, unless the Tenant supplies the Landlord/Agent with a copy of the police report at Tenant's expense.

Air duct cleaning is the responsibility of the Tenant. Tenant is responsible for the clearing of all clogged drains and sewer lines on the premises, unless said stoppage is the result of structural defect or root growth in the main sewer line.

Tenant is responsible for notifying the Agent of any water leak within 24 hours of its discovery or the Tenant will be held responsible for removal of the water and any repairs resulting from the water damage including but not limited to mold remediation.

All decisions regarding repairs, including the completion of any repair, whether to repair or replace the item, and the selection of the technician, will be at the Landlord/Agent's sole discretion. Professional maintenance personnel hired by Landlord/Agent will determine fault or negligence of Tenant. Any delay of repairs shall not release Tenant from the obligation of paying rents when due nor shall Tenant be compensated for down time of appliances or use of the home.



Tenant's initials SB TB TB

Landlord/Agent is not responsible for loss of perishable items due to refrigerator malfunction or loss of power to the refrigerator. Tenant will not be compensated for downtime of appliances nor is Landlord/Agent liable for downtime of appliances.

A septic system is reasonably maintenance-free when the following recommendations are followed:

- Do not discharge too much water into the system at one time.
- Do not use excessive amounts of any household chemicals; for example, do not dump cleaning water for latex paintbrushes into the house sewer.
- Don't deposit coffee grounds, cooking fats, heavy duty paper towels that do not dissolve easily, disposable diapers, facial tissues, cigarette butts, feminine hygiene products, dental floss, cigarette butts, coffee grounds, or other materials that do not decompose into the system.
- Avoid dumping grease down the drain.
- Use a high quality toilet tissue that breaks up easily when wet.
- Use the garbage disposal sparingly as it can clog the drain field.
- Do not park anything heavy on top of the septic tank.

Tenant may be held financially responsible for damage to the property as a result of failure to report a repair item in a timely manner, or that is caused by rain or wind as a result of leaving windows or doors open.

Tenant agrees to remove and properly store all holiday decorations within five (5) business days of the holiday.

On a monthly basis, Tenant agrees to test wrought iron release mechanisms that are on bedroom windows or any other windows. If the mechanism does not function properly, Tenant is to contact Agent immediately.

Emergency maintenance requests are to be called-in to Agent's office phone number, 520-780-7888.

Non-emergency maintenance requests are to be submitted in writing through the maintenance portal on the Agent's website at www.BlueFoxProperties.com.

22. Utility and Maintenance Reduction Program: Heating, Ventilating and Air Conditioning (HVAC) filters will be delivered to the property approximately every sixty days. Tenant shall properly install the filter(s) that is provided within two days of receipt. Tenant hereby acknowledges that the filter(s) will be dated and subject to inspection by Landlord/Agent upon reasonable notice to verify replacement has been made in a timely manner. If at any time Tenant is unable to properly or timely install a filter(s), Tenant shall immediately notify Agent in writing. Tenant's failure to properly and timely replace filter(s) is a material breach of this agreement and Landlord shall be entitled to exercise all rights and remedies it has against Tenant and Tenant shall be liable to Landlord for all damages to the property or HVAC system caused by Tenant's neglect or misuse.

23. Mold Disclosure: Substantial attention has been given to the possible health effects of mold in homes and apartments. Mold found inside such buildings is referred to as indoor mold and is categorized as being either toxic or nontoxic. Certain types of toxic indoor molds may cause health problems in some people while triggering only common allergic responses in others. Non-toxic indoor molds are ordinarily no more than a common nuisance.

The existence of indoor mold is often not detectable by a visual inspection and therefore can go undetected by Real Estate Agents, Landlords and even Professional Home Inspectors. The only certain way to determine if the premises you are leasing contains harmful or toxic indoor mold or other airborne health hazards is to retain an environmental expert to perform an indoor air quality test. If past or present existence of any toxic or non-toxic mold, water intrusion or moisture has been disclosed to you, or discovered by you, you should have that condition professionally evaluated.

If at any time before or during tenancy, Tenant suspects mold may be present and wishes to have the premises tested for mold, the inspection will be at the expense of Tenant.

Agent recommends that every Tenant consider having an indoor air quality test and/or other health hazard test performed by an environmental expert prior to signing the Lease if it is a material concern of Tenant. This is particularly



Tenant's initials SB TB TB

important if any of the inspection reports or disclosure documents indicate the existence of past or present moisture, standing water, visible water stains, or water intrusion in the Premises.

All inspections, including those to detect the existence of indoor mold or other health hazards, should be completed prior to signing the Lease. Any waiver or failure on the part of the Tenant to complete all desired inspections and tests prior to lease signing, including those for indoor mold or other health hazards, is contrary to the advice and recommendations of Agent.

The Agent has no knowledge of whether the Premises may have either toxic or non-toxic indoor mold and they hereby acknowledge that they have not been informed of the existence of any indoor mold problems by the Landlord or any other individual. Also, the Agent has not and cannot verify, whether or not there is now or ever has been any indication of indoor mold in the Premises. If mold is visible inside the Premises, it is hereby acknowledged by the Tenant that Agent is not qualified to verify or identify whether the visible mold is toxic or non-toxic or whether or not there is any existing health risk that may be associated with such mold in or on the Premises.

If Tenant has any questions about indoor mold in or about the Premises, or about potential health problems which may result from toxic and non-toxic mold, the Agent strongly recommends seeking advice from an environmental expert.

Tenant acknowledges having received and read a copy of the forgoing information pertaining to mold. Tenant agrees that if there are any questions pertaining to same, Tenant will seek professional advice in a timely manner. Tenant has not and will not rely on Agent to furnish such advice. Tenant acknowledges that Tenant has received no advice and/or information other than this information, pertaining to mold from either the Agent or Landlord.

TENANT SPECIFICALLY RELEASES, HOLDS HARMLESS AND INDEMNIFIES LANDLORD/AGENT FROM ANY LIABILITY FOR ANY MOLD FOUND ON THE PREMISES WHICH COULD HAVE BEEN DISCOVERED BY SUCH INSPECTIONS.

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24. Pool and Spa Maintenance: The following shall be the responsibility of the party indicated:

Pool surface skimming/cleaning:	Not Applicable
Pool floor cleaning:	Not Applicable
Pool routine maintenance:	Not Applicable
Pool chemicals:	Not Applicable
Pool water level maintenance:	Not Applicable
Spa surface skimming/cleaning:	Not Applicable
Spa floor cleaning:	Not Applicable
Spa routine maintenance:	Not Applicable
Spa chemicals:	Not Applicable
Spa water level maintenance:	Not Applicable

If Tenant is checked above as being the responsible party, Tenant is responsible for the pool and/or spa even if they do not use it/them. These cleaning, maintenance and chemical responsibilities include, but are not limited to: maintaining the proper water level, weekly testing and adjusting for proper chemical balance, weekly cleaning of the pool and/or spa, weekly cleaning of filters and replacement of filters as necessary, proper cleaning and maintenance of covers, ensuring proper power and draining as required.

If the Landlord or Association provides cleaning, maintenance service and/or chemicals, the Tenant is required to report any problems to Agent.

25. Pool, Spa, Fountain, Water Feature: The premises may currently have, or in the future have, a community or private pool, spa, fountain or water feature. Tenant acknowledges that Tenant is solely responsible and liable for the safety to Tenant's family and/or guests. Tenant agrees to hold Landlord and Agent harmless from any claims for damage or injury relating to the pool, spa, fountain or water feature. Tenant acknowledges and accepts the inherent risks, dangers

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 10 of 18



Tenant's initials ^{DS} SB ^{DS} TB ^{DS} TB

and liabilities arising from the swimming pool, spa, fountain or water feature located on the property. This is to include any pool, spa or water feature that the Tenant may bring onto the property. Tenant further acknowledges that children are the primary drowning victims of residential swimming pools and that children shall be watched, attended and supervised by an adult at all times while in the pool area. It is agreed that:

- a. Tenant accepts full responsibility for the actions and activities of guests, family and friends.
- b. Tenant shall be responsible for any and all accidents arising from the use and/or misuse of pool, spa, fountain or water feature facilities.
- c. Tenant agrees to hold harmless and indemnify Landlord and Agent for any and all liability arising by reason of the pool, spa, fountain or water feature.
- d. Tenant shall be responsible for securing access to the pool, spa, fountain or water feature area.

26. **Concessions:** As reflected in the rental rate above, Tenant has been given a rent reduction of \$100.00 per month for their agreement to change the air conditioning filter(s) once per month (or clean them, if applicable), and/or change evaporative (swamp) cooler pads as needed, and maintain the property as described herein. In the event that tenant does not fulfill the terms of this lease, any incentives such as, first month free, etc. will be null and void and Tenant will be responsible for repayment of same.

27. **Emergency Maintenance Items:** Tenant will notify Agent of any emergency repairs needed as soon as possible. For purposes of this agreement, emergencies are defined as: fire, flood, major roof leaks, air conditioning or heating breakdown, sewer line backups, fire, electrical outage endangering life, interior or exterior water/sewer line breaks and the smell of gas odor. In the event the Tenant smells gas odor, Tenant will immediately evacuate the house and contact Southwest Gas Corporation. Tenant is directed to call 911 for emergencies causing immediate danger such as fire.

28. **Fireplace and Chimney Cleaning:** Tenant agrees to thoroughly clean and remove all debris from within the firebox, upon vacating the premises. Tenant acknowledges that upon vacating the premises, Landlord/Agent may hire a professional chimney sweep to clean the chimney at Tenant's expense.

29. **Duties of Tenant:** Tenant shall not decorate or alter the leased premises without prior permission in writing from Landlord/Agent, and shall not interfere with the lawful and proper use and enjoyment of the other leased units in the building or the common areas of the building. **Tenant shall obey all covenants, conditions and restrictions that govern the subdivision in which he/she resides.** Said covenants, conditions and restrictions are recorded in public records which serve as constructive notice of their contents to Tenant. Tenant agrees to pay any fines or fees imposed upon Landlord by the Homeowners Association (HOA) as a result of Tenant's actions or inactions. The Tenant will be charged a \$50 handling fee for each HOA violation, "friendly reminder," or any other notice of non-compliance that is received from the HOA by Landlord/Agent. Tenant shall comply with all statutes and ordinances of all governmental authorities having jurisdiction which are applicable to the premises. Tenant shall not disturb, annoy, endanger or inconvenience other residents or neighbors, use the premises for immoral or unlawful purposes, violate any law or ordinance or verbally harass Landlord/Agent, other tenants, neighbors or guests.

30. **Rules and Law:** Tenant has either received a copy of any rules, regulations, covenants, conditions and restrictions, homeowners' association (HOA) rules, ordinances, and laws ("Rules and Law") concerning the premises, or has made an independent investigation of the applicability of any such Rules and Law to Tenant's use of the premises. If the homeowner's association, state, county, municipal or other government bodies adopt new ordinances, rules or other legal provisions affecting this agreement, the Landlord/Agent may make immediate amendments to bring this agreement into compliance with the law. In such event, the Landlord/Agent agrees to give Tenant notice that this agreement has been amended and shall provide a brief description of the amendment and the effective date. This agreement is contingent upon the homeowners association (HOA) approval. If the Tenant is not approved by the homeowners association for any reason, this lease is null and void.

HOA Information:

HOA Name: Rancho Vistoso
 HOA Management Company: FirstService Residential
 HOA Management Company Address: 7616 N. La Cholla Boulevard Tucson, AZ 85741
 HOA Management Company Phone Number: 520-219-4520
 HOA Management Company Point of Contact (if known): Priscilla Harris

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 11 of 18



Tenant's initials SB TB TB

31. **Waterbeds and trampolines:** Neither waterbeds nor trampolines are allowed without written permission from Landlord/Agent.
32. **Signs:** No signs of any kind shall be displayed on or from any dwelling unit or vehicle without the prior written approval of Landlord/Agent, to include but not limited to: political signs, religious signs, posters, pictures and/or business signs.
33. **Noise and Nuisance:** Quiet hours commence at 10:00 p.m. and continue until 7:00 a.m. Tenant, guests or other persons under Tenant's control shall not play upon or allowed to be played any musical instrument or operate any amplified sound system (radio, television, etc.) on the premises between the quiet hours. No radio or sound system shall be operated on the premises except at a low sound level. No offensive or loud noise, voices, language or behavior is allowed. The use of fireworks, firecrackers or any type of firearm in or around the premises is strictly prohibited. If Tenant produces noise that disturbs neighbors, this shall be deemed a violation of the rental agreement. Tenants agree to first attempt to resolve noise disturbances between themselves. If disturbances and or nuisances continue, Tenants agree to notify local authorities and file a report for said action and forward a copy of the police report to the Landlord/Agent within five (5) days. Tenant agrees not to move in or out of the premises during the quiet hours stated above.
34. **Joint Rental Responsibility:** The term "Tenant" as used herein shall be construed to mean "Tenant" whenever used in this agreement and all such parties jointly and severally liable for any and all rental payments due and owing. Rents are payable in full by one check or money order, no two party checks will be accepted.
35. **Authorized Holdover:** If Tenant, with the express written consent of Landlord/Agent, remains in possession of the premises or any part thereof after expiration of the term of this agreement, or after the termination of this agreement, **such occupancy shall be a tenancy from month-to-month at a rental rate in the amount of the current monthly rental rate applicable here and above plus a 20% increase**, plus all other charges payable hereunder, and upon all of the other terms and conditions of this agreement.
36. **Unauthorized Holdover:** If Tenant, without Landlord/Agent's express written consent, remains in possession of the premises or any part thereof after expiration of the terms of this agreement, or after any termination of this agreement, Landlord/Agent shall have the right to bring an action for possession of premises and thereupon recover from Tenant any damages provided by law. If the Tenant willfully fails to vacate the premises as provided for in this agreement, the Landlord shall be entitled to recover an amount equal to but not more than two months' periodic rent or twice the actual damages sustained by the Landlord, whichever is greater, as provided for in the Arizona Residential Landlord and Tenant Act.
37. **Renters Insurance:** Tenant assumes all liability for personal injury, property damage or loss, and insurable risks. Landlord/Agent strongly recommends that Tenant obtain and keep renter's insurance in full force and effect during the full term of this Agreement.
38. **Notices:** Notice to Tenant shall be by hand delivery or certified mail, return receipt requested, and may be to anyone named as a Tenant herein, addressed to the leased premises. Notice to Landlord/Agent shall be addressed to Blue Fox Properties, LLC, 7368 N La Cholla Boulevard, Tucson, AZ 85741, sent in the same manner. If Tenant receives a notice from any legal authority such as a notice of and proceeding to recover the premises, statement of taxes due, or other information pertaining to the Landlord or the property, Tenant shall immediately inform Agent and forward any of the information in Tenant's possession to Agent. Tenant acknowledges that any notices that result from Tenant defaulting on any term of this agreement, may also be sent to the emergency contact as identified by Tenant in the Rental Application. Requests and notices from any Tenant or occupant, including notice of lease break, repair requests and entry permission, shall be deemed from all Tenants.
39. **Access:** Landlord/Agent reserves the right to enter the leased premises at reasonable times to inspect, make necessary repairs, supply services or show it to prospective residents, purchasers, mortgagees, workers or contractors. A two (2) day notice of Landlord/Agent's intent to enter shall be given to Tenant. An emergency allows immediate entry. In the event that Landlord/Agent provides proper notification of the intent to enter the property for purposes of periodic evaluation, maintenance, a showing for prospective tenants, or any other reason and the Tenant does not allow entry

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 12 of 18


 Tenant's initials DS DS DS
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due to the locks being changed or for any other reason, the Tenant will be charged a \$75 trip charge plus the cost of re-keying the locks, if applicable.

40. **Waiver:** One or more waivers of any covenant or condition by Landlord/Agent shall not be construed as a waiver of any subsequent breach of same or other covenant or condition.
41. **Default:** In the event of a breach of this agreement by Tenant, Landlord/Agent, in addition to all other remedies permitted by law, shall be entitled to the following remedies:
- If Tenant does not pay any rental installment when due and fails to pay such delinquent rental installment within five (5) days after written notice by Landlord/Agent of nonpayment and Landlord/Agent's intention to terminate this agreement, Landlord/Agent may upon expiration of said five (5) day period forthwith terminate this agreement. Reinstatement of the agreement after five (5) days written notice period is conditioned upon payment of all unpaid rent plus any court and attorney fees, and late fees awarded to Landlord/Agent.
 - Landlord/Agent may terminate this rental agreement upon five (5) days written notice if there is a noncompliance by Tenant of duties and obligations set forth above which materially affect health and safety that is not remedied within five (5) days after such notice.
 - Landlord/Agent may terminate the agreement upon ten (10) days written notice for any material noncompliance of Tenant with this agreement, if such noncompliance is not remedied in ten (10) days.
 - Landlord/Agent may terminate this agreement immediately, as law provides, if Tenant threatens or acts in a manner which is dangerous to any other person while located upon the premises.
 - In the event the premises are not left by Tenant in as good condition as when the residency was commenced, ordinary wear and tear excepted, Landlord/Agent shall be entitled to apply any prepaid rent and security deposit toward the payment of such damages arising out of same to the leased premises or other damage to the premises caused by Tenant, Tenant's immediate family or guests.
 - Tenant may terminate this agreement by paying Agent a lease break/re-renting fee of \$1,000 that is not refundable, in whole or in part, for any reason. In addition, Tenant will pay Landlord a fee equal to two times the monthly rental rate, that is not refundable, in whole or in part, for any reason, to be computed after Tenant has relinquished possession of the premises. For example, if the rental rate was \$1,500, Tenant would pay a total of \$4,000 (\$1,000 plus \$1,500 x 2) to terminate this lease agreement.
 - If Landlord/Agent terminates the lease, Tenant is still responsible for all past due lease payments, costs and expenses therein.
42. **Termination upon damage or destruction:** In the event that the leased premises are rendered untenable in whole or in part by reason of fire or other casualty, Landlord/Agent shall have the right to terminate this agreement by giving Tenant written notice of termination within ten (10) days after such fire or other casualty in which this agreement shall be deemed terminated as of the date of such fire or other casualty. Any prepaid rent accruing after the date of such termination and any security deposit which was not applied by Landlord/Agent to any accrued rent or damages caused by Tenant's breach of this agreement shall be forthwith refunded to Tenant upon Landlord/Agent giving such written notice.
43. **Non-assignment:** The Tenant agrees not to assign this agreement in whole or in part, nor sublet the leased premises or any portion thereof, without the prior written consent of Landlord/Agent nor allow any other person other than those contemplated in this agreement, to occupy the leased premises.
44. **Attorney's fees:** In the event that either of the parties shall be in default pursuant to this agreement, or applicable valid law, and any civil action is commenced by the non-defaulting party to enforce or terminate this agreement, provided for by this agreement, the prevailing party in such civil action, in addition to all other remedies provided by this agreement or permitted by applicable valid law, shall be entitled to reasonable attorney's fees and costs and expenses of litigation as may be awarded by the court.
45. **Legal Proceedings:** Landlord/Agent and Tenant agree that any action or proceeding arising out of or in any way connected with this agreement, regardless of whether such claim is based on contract, tort, or other legal theory, shall be heard by a court sitting without a jury and thus Landlord, Agent and Tenant hereby waive all rights to a trial by jury. Landlord/Agent and Tenant agree that all disputes and complaints shall be resolved privately and confidentially between Landlord/Agent and Tenant, or individually through the courts or collections, and further agree to refrain from making



Tenant's initials SB TB TB

degrading or defamatory statements orally or in writing about any other party and the representatives, partners, or agents of the parties. Both parties agree that it would be impractical and extremely difficult to ascertain the amount of actual damages caused by a failure to comply with this provision, therefore, liquidated damages of \$999.00 shall be payable upon demand. All provisions of this paragraph shall survive the termination of this agreement as if this agreement were still in effect.

46. **Sale/Rental of property:** Landlord/Agent has the right to market the property for sale or rent, including but not limited to, erection of signs and showing of the property. **Tenant agrees that agent may show the property to prospective tenants or purchasers, typically during the last 45 days of the lease.** Tenant need not be present for the showing. In the event that Landlord/Agent provides proper notification of the intent to enter the property for purposes of showing the property to prospective tenants or purchasers and the Tenant does not allow entry due to the locks being changed or for any other reason, the Tenant will be charged a \$75 trip charge plus the cost to re-key the locks.
47. **Subordination:** This agreement shall be subordinate to all present and future ground leases, mortgages, deeds of trust and any other encumbrances consented to by the Landlord and also to any modification or extensions thereof. Tenant agrees to execute any subordination agreements or other similar documents presented by Landlord within three (3) days of presentation.
48. **Smoke and Odor:** When Tenant vacates, the property shall be cleaned and restored, at Tenant's expense, in such a manner that will eliminate any smoke or odor evidence or allergens. This may include, but is not limited to: carpet cleaning, fumigating, washing walls, upholstery or fabric cleaning and painting, if the smoke or odor damage has been so heavy that regular cleaning and fumigating will not remove the smoke or odor. Tenant agrees to refrain from burning candles or incense.
49. **Collection agency fees:** If it becomes necessary for Landlord/Agent to use a collection agency to recover monies owed by the Tenant, the Tenant agrees to reimburse the Landlord/Agent for the service fee of the collection agency over and above any monies owed to Landlord/Agent. This service fee may be up to 50% of the amount being collected. Tenant hereby authorizes automated telephone contact to the Tenant by Landlord/Agent and their assignees, including any collection agency the debt may be assigned to. This authorization extends to and includes any and all contact telephone numbers provided by Tenant to Landlord/Agent.
50. **Abandonment:** Landlord/Agent may dispose of personal property in the premises without liability if Landlord/Agent reasonably believes that the property is not worth moving, storing and selling and: [1] the premises are deemed abandoned because Tenant is absent from the Premises without notice to Landlord/Agent for seven (7) consecutive days while any portion of the Rent remains due and unpaid for ten (10) days, or [2] the personal property remains in the premises for twenty-one (21) days after service of a Writ of Restitution and notification to Tenant, or [3] personal property remains in the premises without written agreement with Landlord/Agent after the termination date of this agreement or after Tenant surrenders keys to the premises or notifies Landlord/Agent that Tenant has vacated the premises. In the event of the death of Tenant or absence of Tenant from the premises for seven (7) or more days while any portion of the Rent remains unpaid for ten (10) days, the following person shall be entitled to remove any personal property from the premises: **(This must be someone other than Tenant.)**

Name: Mary Lou Bickel

Street Address: 10950 La Canda Dr

City: Tucson

State: AZ

Zip: 85737

Cell Phone: 5205913286

Work Phone: 5205913286

Home Phone: 5205913286

If no information is provided above, Landlord/Agent may treat the personal property as abandoned in accordance with the terms of this provision.

51. **Lead Warning Statement:** Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips and dust pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, lessors must disclose the presence of known lead-based paint and/or lead



Tenant's initials SB TB TB

based paint hazards in the dwelling. The lessee (Tenant) must receive a federally approved pamphlet on lead poisoning and also receive and sign the Lessor Disclosure of Information on Lead Based Paint & Lead Hazards.

Tenant acknowledges receipt of Lessor disclosure of information on lead paint and lead based paint hazards as seen in the attached addenda, if applicable.

The property was constructed in 1978 or later

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52. **Contact information:** Tenant shall maintain and provide Agent with current contact information. Should the Agent be required to visit the Tenant's residence to communicate with the Tenant because the Tenant did not provide current contact information, the Tenant will be charged a \$75 fee for the trip.

53. **Landlord Statements:** Agent will not be held liable for any statement or promises made by the Landlord if Landlord chooses to contact Tenant directly without Agent's knowledge, presence or consent.

54. **Trustee's Sale Notice:** Tenant shall notify Agent upon receipt of any notice of trustee's sale. Tenant acknowledges that pursuant to law, Tenant's rights under this agreement may be terminated in the event of a trustee's sale. Agent will have no liability to Tenant.

55. **Soldier and Sailor's Civil Relief Act:** If Tenant enters into military service or is a military service member and receives military orders for a change of permanent station or to deploy with a military unit or as an individual in support of a military operation for a period of 90 days or more, Tenant may terminate this agreement by delivering written notice and a copy of Tenant's official military orders to Agent/Landlord. In such a case, this agreement shall terminate 30 days after the next monthly rental payment is due. Military permission for base housing does not constitute a change of permanent station order.

56. **Crime Free Housing:**

- a. Tenant, any other member of Tenant's household or guest, or other person under Tenant's control, shall not engage in criminal activity, including drug-related criminal activity, on or near the said premises. "Drug-related activity" means the illegal manufacture, sale, distribution, use, or possession with the intent to manufacture, sell distribute, or use a controlled substance.
- b. Tenant, any member of Tenant's household or a guest, or other person under Tenant's control, shall not engage in any act intended to facilitate criminal activity, including drug related criminal activity on or near the said premises.
- c. Tenant or members of the household will not permit the dwelling unit to be used for or to facilitate criminal activity, including drug-related criminal activity, regardless of whether the individual engaging in such activity is a member of the household or a guest.
- d. Tenant, any member of Tenant's household or a guest, or another person under Tenant's control, shall not engage in the unlawful manufacturing selling, using, storing, keeping, or giving of a controlled substance or contraband at any location, whether on or near the dwelling unit, premises, or otherwise.
- e. Tenant, any member of Tenant's household, or a guest or another person under Tenant's control, shall not engage in any illegal activity, threatening or intimidating, battery, including but not limited to the unlawful discharge of firearms on or near the dwelling unit premises, or any breach of the lease agreement that jeopardizes the health, safety, and welfare of the landlord, his agent, or other tenants, or involving imminent or actual serious property damage.
- f. **Violation of the above provisions shall be a material and irreparable violation of the lease and good cause for termination of tenancy.** A single violation of any provision of the added addendum shall be deemed a serious violation and a material and irreparable noncompliance. It is understood that a single violation shall be good cause for immediate termination of the lease. Unless otherwise provided by law, proof of violation shall not require criminal conviction, but shall be by a preponderance of the evidence.
- g. In case of conflict between provisions of this paragraph and other provisions of the lease, the provisions of this paragraph shall govern.
- h. Tenant acknowledges that a "red tag" placed on the property by a law enforcement agency will be interpreted as a criminal activity.



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- i. Tenant agrees that Agent/Landlord may use police generated reports, rather than making the police officers appear personally, for any crime free related evictions.
57. **Use of Premises:** Tenant shall occupy and use the premises as a private residence and for no other purpose. Tenant shall not carry on any trade, profession, business, childcare, school, or course of instruction on premises without the written permission of Landlord. Use of the dwelling for anything other than residential use is prohibited.
58. **Conflict of Provisions:** In the event that there is any conflict between the provisions of this agreement and any applicable valid law, the latter shall apply.
59. **Copy of the Act:** Tenant can request a free copy of the Arizona Residential Landlord & Tenant Act from the office of the Arizona Department of Housing. The Department can be reached at www.azhousing.gov or 602.771.1000.
60. **Binding Agreement:** This agreement shall be binding upon and shall inure to the benefit of the heirs, administrators, executors, successors and assigns of the respective parties hereto, provided that any assignment by Tenant shall be subject to the provisions stated above.
61. **Time is of the Essence:** Time is of the essence in this agreement including each and every condition and provision hereof.
62. **Agency Disclosure:** Tenant is given notice that Blue Fox Properties, LLC, its employees and agents are agents of the Landlord and will act as an advocate and negotiate for the Landlord.
63. **Personal Disputes:** Landlord/Agent has no responsibility for resolving disputes or conflicts between Tenants and their neighbors, whatever the nature of those disputes.
64. **Balconies and Patios:** Balconies, patios and terraces are designed for additional space and not storage. Storing or displaying on patios and balconies of boxes, bicycles, refuse, clothing, towels, and other belongings, which are not patio furniture is prohibited and may be removed or disposed by Landlord/Agent. Balconies, patios and windows are not to be used for drying clothes or suspending other objects. Refuse, garbage and trash shall be kept at all times in such containers and in areas approved by Landlord/Agent. Throwing any items from balconies is strictly prohibited. A gas barbecue grill may be stored or used on the patio or balcony only with the express written consent of Landlord/Agent and Tenant is solely liable for any damage resulting from such storage or use. The use of charcoal barbecues is prohibited unless written consent is obtained from Landlord/Agent.
65. **Vehicles:** All vehicles will be in operable condition with current license plates and registration. Any vehicle found on the premises that is not properly licensed, registered and operable is subject to a fine of \$10 per day for each day that it remains on the premises. Changing of oil or working on any vehicle on the premises is not permitted. The only vehicles allowed to consistently park on the premises are those listed on the Tenant's application.
66. **Drop Slot:** Tenant understands that they may use the office drop slot to tender their monthly rent. However, Tenant uses is at their own risk. Agent does not warrant the security of the drop slot should the rent be lost, stolen or otherwise removed by a third party. Tenant agrees to reimburse Agent/Landlord immediately for the rent that was tendered.
67. **Smoke/Carbon Monoxide Detectors:** If the premises contain smoke and/or carbon monoxide detectors, Tenant shall maintain the detectors in working condition, change batteries and notify Agent if a detector is not working properly or is missing from the premises. Upon occupancy it shall be the responsibility of the Tenant to regularly test the detectors to insure that the devices are in operable condition. The Tenant will inform Agent immediately in writing of a malfunction or failure of the detectors at any time during this agreement.
68. **Equal Housing Opportunity:** Landlord and Agent comply with federal, state and local fair housing laws and regulations.
69. **Days:** All references to days in this agreement shall be construed as calendar days unless otherwise indicated. A day shall begin at 12:00 a.m. and end at 11:59 p.m.

RESIDENTIAL RENTAL AGREEMENT (Rev 100521 – RBP for PW)

Page 16 of 18



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70. **Indemnity and Release:** Tenant agrees to indemnify and hold harmless Agent (Blue Fox Properties, LLC) and any of its respective agents, representatives or employees from any loss, claim, liability or expense arising from the injury to any person or damage to or loss of any property, in any way caused by the Tenant's family, guests, invitees, agents, pets or others under their control.

71. **Notice to Vacate:** Tenant is required to submit a forty five (45) day written notice of intent to vacate which will include the specific time of departure. This notice is to be submitted no later than fifteen (15) days before the first day of the last month of this agreement. If lease is renewed, a new rental rate may be negotiated.

72. Security Deposit Refund Requirements:

- a. **Tenant agrees to pay to have the carpets professionally cleaned by a vendor on Agent's approved carpet cleaning vendor list.** If ticks, fleas or bed bugs are found in the premises, an additional charge for an exterminating service will be applied and deducted from Tenant's security deposit.
- b. Tenant agrees to use picture hooks and small nails to hang pictures. When vacating, Tenant agrees to remove nails and fill the small holes and touch-up the paint with matching color and sheen. Walls with furniture marks or other marks that cannot be washed off must be painted. **Touch-up paint must match walls!** It does not matter if Tenant found the paint on the property or not, it MUST match. This means both color and sheen. Often, the best approach is to match the paint as close as possible and paint the entire wall.
- c. Kitchen appliances must be clean and grease free; including oven hood and underneath reflector shields. Cabinets and drawers should be emptied and wiped out. Kitchen floor must be clean. Bathrooms must be cleaned, including hard water stains in toilets, tubs, shower doors, windows, etc. Soap dishes in sink and shower must be cleaned. Fireplaces must be cleaned out and ashes removed. Mini-blinds, window sills, venetian blinds, shutters, etc. must be dust and grease free. Garage/carports must be swept out, oil stains cleaned up and all personal belongings removed. Pool and pool area must be left in good, clean condition.
- d. Yard must be weeded, grass cut and free of trash and debris-including pet debris.
- e. Tenant will replace or pay for (at owners option, due to breakage, loss or damage) damaged carpet, drapes, window blinds, kitchen appliances, glass, cultured marble, brass fixtures, trim, windows, locks or keys. This includes any damage resulting from clogged toilets, overflowing sinks or bathtubs if it is the result of Tenants' misuse or neglect. Repairs from burns or spots on carpets, indentations or scratches in wood or vinyl flooring caused by furniture, will be charged to the tenant. **Colored or clear toilet flushing cleaners used in toilet tanks are not permitted.** They deteriorate plumbing mechanisms and stain surfaces if toilet overflows.
- f. When completing the Property Evaluation Form, Tenant must go through the premises thoroughly, listing all the visible deficiencies i.e., burn in carpet, scratches in sink, nicks in linoleum, etc. Any damage not reported on the Property Evaluation Form, may be charged to Tenant's security deposit.
- g. Tenants must abide by and comply with all Covenants, Conditions and Restrictions governing the property which are of record in the Pima County Courthouse. Any fines imposed and not collected will be charged against the Tenants' security deposit.
- h. Tenant agrees not to use abrasives such as Comet or Soft Scrub on cultured marble or brass fixtures and trim. Tenant must change air conditioner/heater filters frequently, at least once a month and evaporative (swamp) cooler filters (if applicable) as needed.
- i. In the event the cost of repairs after the Tenant surrenders the property to Agent exceeds the amount of the security deposit collected, a ten percent (10%) service charge may be added to the repair costs that exceed the security deposit amount to cover Agent's additional time and costs to prepare the property for the next Tenant.
- j. If more than 3 vendors must be contacted to return the property to rentable condition, Tenant will be charged \$25 for each vendor that must be sent to the property to return it to rentable condition.
- k. Any refund of the security deposit will be made with one check payable to all current Tenants of the rental agreement.

73. **Move-out Evaluation Times:** Tenant shall have the right to be present at the move-out evaluation. Evaluations will be scheduled during normal business hours: Monday through Friday, 9:00 a.m. to 5:00 p.m., excluding holidays. If Tenant requests an evaluation time outside of these hours and Agent can accommodate the request, a charge of \$75 per hour will be charged to the Tenant and deducted from the Tenant's security deposit.



Tenant's initials SB TB TB

74. **Addenda:** The attached addenda are part of and complete this agreement in its entirety:

- a. Rental Application(s)
- b. Lead Based Paint Addendum, if applicable
- c. Notice of Occupancy and Tenant Compliance Agreement, if applicable
- d. Property Evaluation Form
- e. Other: n/a
- f. Other: No Security Deposit Option Addenda

75. **Entire Agreement:** This instrument constitutes the entire agreement between the parties and contains all representations made by the Landlord/Agent. This is a legally binding agreement. Agent only represents the Landlord in this transaction. Any conditions or deletions or any subsequent modifications thereof, shall not be valid unless in writing and signed by all parties. Should any provisions in this lease be determined by a court of competent jurisdiction to be unenforceable, that term shall be deleted and the remainder of the lease shall remain enforceable. Should any other agreement exist outside of this lease, and the terms of this lease are not met, then all other contractual obligations shall be considered null and void. The failure to initial any page of this agreement shall not affect the validity or terms of this agreement. **Tenant has read this entire agreement and acknowledges that all blank lines have been addressed and that Tenant has received a fully executed copy of this agreement.**

Tenants' initials SB TB TB

Tenant signature: Samuel Bickel Date: Jan-13-2023 | 1:54:49 PM CST
 Tenant signature: Tony Bickel Date: Jan-13-2023 | 6:05:00 PM CST
 Tenant signature: Tyler Bickel Date: Jan-13-2023 | 4:22:49 PM PST
 Tenant signature: _____ Date: _____

Agent for Landlord (Blue Fox Properties, LLC): Courtney Alvarado Date: Jan-17-2023 | 9:36:57 AM CST



Tenant's initials SB TB TB